

Jeffrey J. Hunt (5855)
David C. Reymann (8495)
Carissa A. Uresk (18114)
PARR BROWN GEE & LOVELESS
101 South 200 East, Suite 700
Salt Lake City, Utah 84111
Telephone: (801) 532-7840
jhunt@parrbrown.com
dreymann@parrbrown.com
curesk@parrbrown.com

Attorneys for the Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, and the Utah Headliners Chapter of the Society of Professional Journalists

C. Michael Judd (14692)
PARSONS BEHLE & LATIMER
201 South Main Street, Suite 1800
Salt Lake City, Utah 84111
Telephone: (801) 532-1234
mjudd@parsonsbehle.com

Attorneys for The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network

**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**MEDIA INTERVENORS'
MEMORANDUM OPPOSING
STIPULATED MOTION TO
CLASSIFY AS PRIVATE THE
TRANSCRIPT AND AUDIO OF
OCTOBER 24, 2025 HEARING**

**(Hearing Scheduled – December 11,
2025)**

Case No. 251403576

Hon. Tony F. Graf, Jr.

TABLE OF CONTENTS

INTRODUCTION	1
FACTUAL BACKGROUND.....	3
ARGUMENT	5
I. The Public Has a Constitutional Right of Access to Court Proceedings and Records	5
II. The Proponent of Closure Bears a Heavy Constitutional Burden to Overcome the Public’s Right of Access	8
A. Fair Trial Rights	9
1. Substantial Probability of Endangering Fair Trial Rights.....	10
2. Less Restrictive Alternatives	13
B. Privacy Interests.....	15
III. The Transcript and Audio of the Hearing Should be Made Public with Limited, if any, Redactions	16
CONCLUSION.....	19

TABLE OF AUTHORITIES

Cases	Page(s)
<i>ABC, Inc. v. Stewart</i> , 360 F.3d 90 (2d Cir. 2004).....	18
<i>Am. Bush v. City of S. Salt Lake</i> , 2006 UT 40, 140 P.3d 1235	7
<i>Angilau v. United States</i> , No. 2:16-00992-JED, 2017 WL 5905536 (D. Utah Nov. 29, 2017).....	6
<i>Applications of Nat’l Broadcasting Co.</i> , 828 F.2d 340 (6th Cir. 1987).....	6
<i>Associated Press v. United States Dist. Ct.</i> , 705 F.2d 1143 (9th Cir. 1983).....	6
<i>Globe Newspaper Co. v. Pokaski</i> , 868 F.2d 497 (1st Cir. 1989).....	6
<i>Globe Newspaper Co. v. Superior Court</i> , 457 U.S. 596 (1982)	5, 7
<i>In re Application & Affidavit for a Search Warrant</i> , 923 F.2d 324 (4th Cir. 1991).....	12
<i>In re Cont’l Ill. Sec. Litig.</i> , 732 F.2d 1302 (7th Cir. 1984).....	6
<i>In re New York Times Co.</i> , 828 F.2d 110 (2d Cir. 1987).....	6
<i>In re Search Warrant for Secretarial Area Outside Office of Gunn</i> , 855 F.2d 569 (8th Cir. 1988).....	6
<i>In re Times-World Corp.</i> , 488 S.E.2d 667 (Va. Ct. App. 1997)	9
<i>In re Washington Post. Co.</i> , 807 F.2d 383 (4th Cir. 1986).....	6
<i>Kearns-Tribune v. Lewis</i> , 685 P.2d 515 (Utah 1984)	5, 8
<i>KUTV, Inc. v. Conder</i> , 668 P.2d 513 (Utah 1983).....	13
<i>Leucadia, Inc. v. Applied Extrusion Tech., Inc.</i> , 998 F.2d 157 (3d Cir. 1993).....	6
<i>Miller v. Fluent Home, LLC</i> , No. 2:20-cv-00641, 2020 WL 5659051 (D. Utah Sept. 23, 2020)...	6
<i>Murphy v. Florida</i> , 421 U.S. 794 (1975)	12
<i>Neb. Press Ass’n v. Stuart</i> , 427 U.S. 539 (1976).....	10
<i>New York v. DeBeer</i> , 774 N.Y.S.2d 314 (N.Y. Cty. Ct. 2004).....	9, 10, 11
<i>Presley v. Georgia</i> , 558 U.S. 209 (2010).....	17
<i>Press-Enterprise Co. v. Superior Court</i> , 464 U.S. 501 (1984).....	5, 8, 18
<i>Press-Enterprise Co. v. Superior Court</i> , 478 U.S. 1 (1986).....	5, 8, 12, 13
<i>Provo City Corp. v. Willden</i> , 768 P.2d 455 (Utah 1989).....	7
<i>Richmond Newspapers v. Virginia</i> , 448 U.S. 555 (1980).....	5, 8, 18, 19
<i>Rosado v. Bridgeport Roman Catholic Diocesan Corp.</i> , 970 A.2d 656 (Conn. 2009).....	6, 8
<i>Soc’y of Prof’l Journalists v. Briggs</i> , 675 F. Supp. 1308 (D. Utah 1987)	6
<i>Soc’y of Prof’l Journalists v. Bullock</i> , 743 P.2d 1166 (Utah 1987).....	5, 15, 18
<i>Soc’y of Prof’l Journalists v. Sec’y of Labor</i> , 616 F. Supp. 569 (D. Utah 1985)	8, 18

<i>State v. Aase</i> , 762 P.2d 1113 (Utah Ct. App. 1988).....	11
<i>State v. Allgier</i> , 2011 UT 47, 258 P.3d 589	14
<i>State v. Andrews</i> , 574 P.2d 709 (Utah 1977)	13
<i>State v. Archuleta</i> , 857 P.2d 234 (Utah 1993)	6, 7, 8
<i>State v. Bishop</i> , 753 P.2d 439 (Utah 1988).....	11, 13
<i>State v. Cayer</i> , 814 P.2d 604 (Utah Ct. App. 1991).....	11
<i>State v. Cianci</i> , 496 A.2d 139 (R.I. 1985).....	9
<i>State v. Kozma</i> , No. 92-15914 CF10E, 1994 WL 397438 (Fla. Cir. Ct. Feb. 4, 1994)	10, 11
<i>State v. Lafferty</i> , 749 P.2d 1239 (Utah 1988)	11, 12
<i>State v. Olsen</i> , 869 P.2d 1004 (Utah Ct. App. 1994)	11
<i>State v. Pierre</i> , 572 P.2d 1338 (Utah 1977).....	11, 13
<i>State v. Rogers</i> , 919 N.W.2d 193 (N.D. 2018)	17
<i>State v. Schaefer</i> , 599 A.2d 337 (Vt. 1991)	12
<i>Supernova Media, Inc. v. Pia Anderson Dorius Reynard & Moss, LLC</i> , 2013 UT 7, 297 P.3d 599	17
<i>United States v. El-Sayegh</i> , 131 F.3d 158 (D.C. Cir. 1997)	6
<i>United States v. Martin</i> , 746 F.2d 964 (3d Cir. 1984)	12
<i>United States v. Pickard</i> , 733 F.3d 1297 (10th Cir. 2013).....	6
<i>United States v. Smith</i> , 776 F.2d 1104 (3d Cir. 1985)	6
<i>United States v. U.S. Oncology, Inc.</i> , No. 7:00-CV-00350, 2005 WL 3334296 (W.D. Va. Dec. 7, 2005).....	10
<i>Waller v. Georgia</i> , 467 U.S. 39 (1984).....	5, 15

Rules

Utah Code Jud. Admin. R. 4-202.04.....	6, 14
Utah Code Jud. Admin. R. 4-202.04(6)(C).....	13
Utah Code Jud. Admin. R. 4-202.04(6)	8
Utah Code Jud. Admin. R. 4-202.04(5)	14

Other Authorities

<i>Estimating the Occurrence of Trials Prejudiced by Press Coverage</i> , 72 Judicature 162 (October-November 1988).....	10
--	----

Proposed limited intervenors the *Deseret News*, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, the Utah Headliners Chapter of the Society of Professional Journalists, The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network (all collectively, **Media Intervenors**) respectfully submit this memorandum opposing the request by Defendant, stipulated to by the State, to classify as “private” the audio and written transcript of the hearing held in this case on October 24, 2025 (Doc. 152.) The motion should be denied because the stipulated motion, even as modified by the parties’ non-detailed stipulation for redaction, does not satisfy the rigorous constitutional standard necessary to overcome the presumptive right of public access to court records and proceedings or this Court’s rules governing access to such records and proceedings.

INTRODUCTION

The motion marks the first time this Court will confront what is likely to be a series of requests by Defendant to close these proceedings, and the records relating to it, from public view, based solely on generalized assertions that pretrial publicity will make it impossible for Defendant to receive a fair trial. These kinds of blanket claims are not new. They arise in nearly every high-profile criminal prosecution, often at alarmingly early stages of the case, seeking to support broad prophylactic sealing orders with speculative predictions about what the jury pool might see in the news and how that might make it impossible to do, months or years from now, what courts do every day—seat a fair and impartial jury.

This particular issue arose because the State and Defendant stipulated to close a hearing to the public regarding Defendant's allowed attire and restraints during pretrial proceedings. This Court acceded to that request without the benefit of briefing or objection from the news media or anyone else. That was followed by another stipulated request to seal the entire audio and transcript of that hearing, seemingly without regard to its actual content and without *any* argument by the parties regarding why the content of either the hearing or the transcript warranted that extraordinary remedy. That is the motion currently pending before the Court.

Fortunately, after this Court declined to sign on to the parties' stipulated blanket sealing order and set this matter for a closure hearing, the State and Defendant appear to have retreated from their original positions and have now asked only for certain portions of the transcript to be redacted, albeit based on two-word, unexplained justifications that do not even remotely approach the constitutional showing necessary to conduct the Court's business in secret. While it is helpful the parties have now limited their closure request only to certain portions of the transcript, the way in which these issues have arisen raises concerns about how the parties will deal with them in further proceedings in this case.

To that end, Media Intervenors submit this opposition to provide the Court with a comprehensive discussion of the governing constitutional standards for the extraordinary remedy of denying the public's presumptive right of access to court proceedings and records, in the hope that it may help inform decisions on these issues as this case moves forward.

In the end, every high-profile criminal prosecution has significant pretrial publicity, no matter where it occurs. And there is a reflexive tendency in every such case to say it must be the first of its kind, unique in a way that no one has ever seen, and that therefore the court should

radically depart from decades of constitutional precedent mandating open court proceedings to conduct, in effect, a quasi-secret trial.

The long history of our criminal justice system counsels otherwise. Courts do the public's business. This is not the first high-profile criminal trial in Utah, nor will it be the last. Time and again, our courts have managed the delicate constitutional balance between the defendant's right to a fair trial and the public's right to observe the proceedings of the judicial process without sacrificing either. This case is no different. This Court should affirm its commitment to conduct these proceedings in the light of day, deny unwarranted and generalized requests for closure, and uphold the public's constitutional right of access to these proceedings.

FACTUAL BACKGROUND

On October 9, 2025, Defendant moved for leave to appear at in-person proceedings in civilian clothing and without restraints. *See* Mot. to Appear in Civilian Clothing (Doc. 83). In doing so, Defendant asked for files from the Utah County Sheriff's Office, presumably related to safety issues associated with the relief he requested. *Id.* at 2. Defendant also asked that the hearing on that motion be closed to the public—a closure Defendant argued was needed in order to allow the Court to “take evidence regarding the need for physical restraints in this particular case.” *Id.* at 3. When the State responded to that motion, it asked that its response be classified as “private” (that is, not accessible to the public) to protect “information ... regarding specific security measures in this case.” *See* Mot. to Classify as Private (Doc. 102).

The Court granted that Motion to Classify, and it agreed to close the October 24 hearing on Defendant's “civilian clothing” motion. Then, in the days leading up to that October 24 hearing, something unexpected happened: both the State and Defendant spent portions of their pre-hearing filings asking the Court to close this proceeding to the public altogether. *See, e.g.,*

Reply. Supp. Mot. to Appear in Civilian Clothing (Doc. 121) (“Mr. Robinson agrees with the Sheriff that the Court should limit media coverage, or video and photographic coverage, at the least, so defendant’s physical appearance is no longer the subject of interest and he has some chance of securing a fair and impartial jury.”).

While the Court declined to consider that request without proper briefing, *see* Oct. 27, 2025 Order re: Civilian Clothing and Restraints, at 2 (Doc. 137), its post-hearing order suggests that at least some of the October 24 hearing was dedicated to the topic of restricting public access to this proceeding altogether, *see id.* (“If the parties seek to have all electronic media coverage limited or restricted during in-court hearings, the parties may file a joint motion. The court will not rely on the briefing already provided.”).

Then, on November 3, 2025, Defendant filed a follow-on motion—a Stipulated Motion to Classify as Private. This time, Defendant, with the apparent stipulation of the State, asked that the Court shield from public view the entirety of the transcript and audio of that October 24, 2025 “civilian clothing” hearing. *See* Stip. Mot. to Order Tr. & Classify Tr. & Audio as Private (Doc. 152). Despite the stipulation by the parties, this Court properly declined to sign the proposed order, instead issuing its own Order for Transcript of October 24, 2025, Hearing, entered Nov. 10, 2025 (Doc. 172), recognizing “the court is required to hold a closure hearing” to consider the closure request, rather than simply granting it as stipulated.

Finally, last week, on December 4, 2025, Defendant and the State filed what they curiously called a “Joint Status Report” that retreated from the wholesale sealing request in their original motion and instead asked this Court to make certain redactions to the transcript. *See* Joint Status Rep. of the Parties Concerning the Redaction of Portions of the Tr. of the Oct. 24, 2025, Sealed Hrg. (Doc. 209). That filing listed twenty-two different sections of the transcript

the parties want redacted, each identified with no more than two- or three-word descriptions that fail entirely to describe the nature of the information at issue or explain why it should be non-public.

ARGUMENT

I. The Public Has a Constitutional Right of Access to Court Proceedings and Records

The public and news media enjoy a presumptive constitutional right of access to criminal proceedings. In its watershed opinion in *Richmond Newspapers v. Virginia*, 448 U.S. 555 (1980), the United State Supreme Court explained that “at the time when our organic laws were adopted, criminal trials both here and in England had long been presumptively open. This is no quirk of history; rather, it has long been recognized as an indispensable attribute of an Anglo-American trial.” *Id.* at 569. “From this unbroken, uncontradicted history, supported by reasons as valid today as in centuries past, we are bound to conclude that a presumption of openness inheres in the very nature of a criminal trial under our system of justice.” *Id.* at 573.

Following *Richmond Newspapers*, the United States Supreme Court and the Utah Supreme Court have reaffirmed and extended this right of access in a variety of contexts, including pretrial criminal proceedings. *See, e.g., Press-Enterprise Co. v. Superior Court*, 478 U.S. 1 (1986) (“*Press-Enterprise II*”) (preliminary hearings); *Press-Enterprise Co. v. Superior Court*, 464 U.S. 501 (1984) (“*Press-Enterprise I*”) (criminal voir dire proceedings); *Waller v. Georgia*, 467 U.S. 39 (1984) (pretrial suppression hearing); *Globe Newspaper Co. v. Superior Court*, 457 U.S. 596 (1982) (criminal trial involving child victim of rape); *Soc’y of Prof’l Journalists v. Bullock*, 743 P.2d 1166 (Utah 1987) (competency hearing); *Kearns-Tribune v. Lewis*, 685 P.2d 515 (Utah 1984) (preliminary hearings).

The same constitutional right of access also extends to the court file. “Public access to court documents traces its roots back centuries through the common law, stemming from the practice of open trials.” *Rosado v. Bridgeport Roman Catholic Diocesan Corp.*, 970 A.2d 656, 676 (Conn. 2009). “The existence of this right, which antedates the Constitution and which is applicable in both criminal and civil cases, is now ‘beyond dispute.’” *Leucadia, Inc. v. Applied Extrusion Tech., Inc.*, 998 F.2d 157, 161 (3d Cir. 1993) (citation omitted). As the Utah Supreme Court held in *State v. Archuleta*, 857 P.2d 234 (Utah 1993):

We see no reason to distinguish between access to a preliminary hearing and the documents filed in relation to that hearing. As one scholar has noted, “***Access to pretrial documents furthers the same societal needs served by open trials and pretrial civil and criminal proceedings.... The availability of documents means that graft and ignorance will be more difficult to conceal.***” Disclosing documents used by courts in reaching a decision in a preliminary hearing will discourage decisions based on improper means and will promote conscientious performance by all officials involved in the criminal justice system. Therefore, providing a presumptive right of access to documents filed in connection with preliminary hearings can play a significant positive role in the functioning of that process.

Id. at 238-39 (citation omitted; ellipses in original; emphasis added).¹ This constitutional presumption of access to court records is also reflected in Utah’s court rules. See Utah R. Jud. Admin. 4-202.04 (similar rule-based requirements for balancing and narrow tailoring).

¹ The federal courts in this district, along with virtually every circuit court to have considered the question, have likewise agreed that the right of access to court records is of constitutional magnitude. See, e.g., *Angilau v. United States*, No. 2:16-00992-JED, 2017 WL 5905536, at *7 (D. Utah Nov. 29, 2017) (“[T]here is a First Amendment right of access to the judicial documents at issue here[.]”), *aff’d. on alternate grounds*, 2018 WL 1271894 (D. Utah Mar. 9, 2018); *Miller v. Fluent Home, LLC*, No. 2:20-cv-00641, 2020 WL 5659051, at *1 (D. Utah Sept. 23, 2020) (“In the United States, there is both a constitutional (First Amendment) and a common law right of public access to judicial documents[.]” (citation omitted)); *Soc’y of Prof’l Journalists v. Briggs*, 675 F. Supp. 1308, 1310 (D. Utah 1987) (“This court agrees and holds that there is a constitutional right of access to public documents.”); *Globe Newspaper Co. v. Pokaski*, 868 F.2d 497, 502 (1st Cir. 1989) (there is a “First Amendment right of access to records submitted in connection with criminal proceedings”); *In re New York Times Co.*, 828 F.2d 110, 115 (2d Cir. 1987) (“a qualified First Amendment right of access extends to such documents”); *United States v. Smith*, 776 F.2d 1104, 1112 (3d Cir. 1985) (“no reason occurs to us why [the

The public’s right of access to court records is also grounded in [article I, section 15 of the Utah Constitution](#). See [Archuleta](#), 857 P.2d at 240. Notably, the Utah Supreme Court has recognized that this provision is broader and prohibits a greater range of government censorship than the First Amendment. See [Am. Bush v. City of S. Salt Lake](#), 2006 UT 40, ¶ 21, 140 P.3d 1235; see also [Provo City Corp. v. Willden](#), 768 P.2d 455, 456 n.2 (Utah 1989). Thus, the *Press-Enterprise* test is a constitutional minimum, and Utah’s constitutional protections may be even broader.²

This right of access has a time-honored history, rooted in the acknowledgement that courts do the public’s business and an open court fosters and protects important societal values. It enhances the quality and safeguards the integrity of the fact-finding process, [Globe Newspaper Co.](#), 457 U.S. at 604, improves basic fairness and the appearance of fairness in the proceedings,

Press-Enterprise II] analysis does not apply as well to judicial documents”); *In re Washington Post. Co.*, 807 F.2d 383, 389 (4th Cir. 1986) (“the First Amendment right of access applies to documents filed in connection with [hearings]”); *Applications of Nat’l Broadcasting Co.*, 828 F.2d 340, 343 (6th Cir. 1987) (applying *Press-Enterprise II* test to hold that “there is a qualified right of access to documents and records that pertain to [the proceeding in question]”); *In re Cont’l Ill. Sec. Litig.*, 732 F.2d 1302, 1308 (7th Cir. 1984) (“this presumption is of constitutional magnitude”); *In re Search Warrant for Secretarial Area Outside Office of Gunn*, 855 F.2d 569, 573 (8th Cir. 1988) (“the first amendment right of access does extend to the documents filed in support of search warrant applications”); *Associated Press v. United States Dist. Ct.*, 705 F.2d 1143, 1145 (9th Cir. 1983) (“There is no reason to distinguish between pretrial proceedings and the documents filed in regard to them.”); *United States v. El-Sayegh*, 131 F.3d 158, 160 (D.C. Cir. 1997) (“The First Amendment guarantees the press and the public access to aspects of court proceedings, including documents”).

This constitutional right is in addition to the public’s long-recognized common law right of access to court records, which, though slightly less protective than the constitutional right, still provides a “strong presumption in favor of public access.” [United States v. Pickard](#), 733 F.3d 1297, 1302 (10th Cir. 2013) (citation omitted).

² The parties’ threadbare request for sealing focuses solely on the Code of Judicial Administration. While the factors in those rules certainly provide guidance in cases where they do not conflict with constitutional principles, the provisions of the First Amendment and the Utah Constitution obviously control where there is a conflict. Accordingly, this memorandum focuses primarily on the controlling constitutional test.

Press-Enterprise II, 478 U.S. at 13, fosters public confidence in the judicial process and acceptance of its results, *Press-Enterprise I*, 464 U.S. at 506, acts as a check on the judiciary, *Richmond Newspapers*, 448 U.S. at 568, and allows the public to participate in government. *Id.* at 587 (Brennan, J., concurring). See also *Rosado*, 970 A.2d at 676 (“Public monitoring of the judicial process through open court proceedings and records enhances confidence in the judicial system by ensuring that justice is administered equitably and in accordance with established procedures.”). Although members of the public may not attend criminal proceedings in large numbers, the news media acts as the public’s surrogate in attending such proceedings and reporting to the public, thus educating the public. *Richmond Newspapers*, 448 U.S. at 572.

Conversely, denying public access to judicial proceedings or documents precludes public scrutiny of the judicial process, creating an impression of unfairness and secrecy, even though the proceedings may in fact be imminently fair. See M. Fowler & D. Leit, *Media Access to the Courts: The Current Status of the Law* (American Bar Association, Section of Litigation 1995) at 1; see also *Soc’y of Prof’l Journalists v. Sec’y of Labor*, 616 F. Supp. 569, 576 (D. Utah 1985) (Winder, J.) (“Openness safeguards our democratic institutions. Secrecy breeds mistrust and abuse.”), *appeal dismissed and remanded on other grounds*, 832 F.2d 1180 (10th Cir. 1987).

II. The Proponent of Closure Bears a Heavy Constitutional Burden to Overcome the Public’s Right of Access

To overcome the public’s constitutional right of access, a proponent of closure bears a “significant burden.” *Kearns-Tribune*, 685 P.2d at 523. The right can be overcome only if that person establishes (1) a “substantial probability” that public access will endanger a compelling governmental interest, and (2) that there are no less restrictive alternatives to closure that will protect that interest. *Press-Enterprise II*, 478 U.S. at 14; see also *Kearns-Tribune*, 685 P.2d at 523; *Archuleta*, 857 P.2d at 238-39 (same standard for judicial records); cf. Utah Code Jud.

Admin. R. 4-202.04(6) (similar factors under court rules). This showing cannot be made by speculation or generalized assertions. Rather, “[i]t is only upon the showing of some *specific circumstance* that gives rise to *significant probability* of prejudice to the proceeding that the courts are inclined to close the courtroom and seal the records.” *New York v. DeBeer*, 774 N.Y.S.2d 314, 315 (N.Y. Cty. Ct. 2004) (emphasis added); *see also State v. Cianci*, 496 A.2d 139, 145 (R.I. 1985) (“blanket statement of potential prejudice was not sufficient to demonstrate compelling reasons for ordering the sealing of discovery documents”).

In their recent stipulation, the parties identify (without any explanation) three purported interests they say warrant keeping portions of the hearing transcript from the public: (1) courtroom and jail security interests, (2) fair trial rights, and (3) privacy interests. Media Intervenor does not contest that certain security interests, so long as they are narrowly drawn, can be sufficient to justify redacting very limited portions of the transcript. The remaining two interests—which are asserted only by Defendant—are addressed below.

A. Fair Trial Rights

Defendant has mentioned in multiple filings, even when it was not at issue, that because this is a high-profile case with substantial pretrial publicity, proceedings and records must be closed or he will be denied his right to a fair trial, as if this Court has no choice, by virtue of the substantial public interest in this case, but to conduct all meaningful portions of the proceedings in secret. That is not the law. “The First Amendment right of access cannot be overcome by the conclusory assertion that publicity might deprive the defendant of [the right to a fair trial].” *In re Times-World Corp.*, 488 S.E.2d 667, 682 (Va. Ct. App. 1997) (citation omitted). If it were, that mere incantation would mean that every high-profile case was closed. Such non-particularized assertions satisfy neither prong of the *Press-Enterprise* test.

1. Substantial Probability of Endangering Fair Trial Rights

The United States Supreme Court has been crystal clear that “[p]re-trial publicity—even pervasive, adverse publicity—does not inevitably lead to an unfair trial.” *Neb. Press Ass’n v. Stuart*, 427 U.S. 539, 554 (1976). And merely invoking such publicity does not satisfy the constitutional test. As one court noted in unsealing a defendant’s confession:

[E]ven massive pretrial publicity about a case is not enough to show a serious and imminent threat to the administration of justice or to the denial of fair trial rights. The fact that the Statement has been determined to be inadmissible does not alter that conclusion. Even where pretrial publicity includes publication of inadmissible evidence or confessions, a defendant can still receive a fair trial.

State v. Kozma, No. 92-15914 CF10E, 1994 WL 397438, at *2 (Fla. Cir. Ct. Feb. 4, 1994) (citations omitted). *See also, e.g., DeBeer*, 774 N.Y.S.2d at 315 (finding that defendant not entitled to have sealed a confession contained in document filed with court); *United States v. U.S. Oncology, Inc.*, No. 7:00-CV-00350, 2005 WL 3334296, at *3 (W.D. Va. Dec. 7, 2005) (finding that defendants had not overcome “the presumption in favor of public access” by providing “general claims of prejudice”).

With respect to the jury pool, it is also important to note that the pool for Utah County is quite large. Numerous studies show that few potential jurors read newspapers, remember specifically what they have read or heard, or are unwilling to follow court instructions to keep an open mind. Indeed, the rate of immediate information loss from television, radio and newspapers is 77%.³ The Utah Supreme Court well illustrated this point when rejecting the prejudicial publicity claim of a notorious defendant:

Defendant also claims that potential jurors had read a prejudicial news article which appeared in the paper the morning of jury selection. However, only six [out of 84

³ See Ralph Frasca, “Estimating the Occurrence of Trials Prejudiced by Press Coverage”, 72 *Judicature* 162 (October-November 1988); *See also* Alf Pratte, “What Effect Does Pretrial News Coverage Have on Jurors?”, Editor & Publisher, (December 26, 1987).

total] panel members reported that they had read part or all of the article or seen the headlines thereof.

State v. Bishop, 753 P.2d 439, 459 (Utah 1988). Furthermore, no trial has been set in this matter, and one may never happen. The time between pretrial proceedings and the actual trial weighs against any finding of undue prejudice. See, e.g., *Kozma*, 1994 WL 397438, at *2 (“A significant number of the public does not retain what is disseminated by the media[.]”); *DeBeer*, 774 N.Y.S.2d at 314 (“[T]here will be a significant period of time between access to the defendant’s statement and a trial on this matter.”).

But even if the Court were to assume that every member of the jury pool not only saw, but sufficiently remembered, pretrial publicity by the time of trial, that is still not enough. Time and again, Utah courts have rejected the argument that exposure to incriminating pretrial publicity will either automatically disqualify potential jurors or make seating an unbiased jury impossible.⁴ As the Utah Supreme Court put it:

[Pretrial] publicity may lead jurors to form opinions about the defendant’s guilt ... but that does not necessarily disqualify the jurors. “To hold that the mere existence of any preconceived notion as to the guilt or innocence of an accused,

⁴ See, e.g., *State v. Pierre*, 572 P.2d 1338, 1350 (Utah 1977) (rejecting pretrial publicity claim and noting “voir dire was neither simple nor perfunctory” but rather was “a serious and comprehensive examination of the potential jurors to determine if any could remember or had contact, directly or indirectly, with the facts or publicity surrounding the case that would in any way suggest a likelihood of prejudice”); *State v. Bishop*, 753 P.2d 439, 459 (Utah 1988), *overruled on other grounds by State v. Menzies*, 889 P.2d 393 (Utah 1994) (effective voir dire eliminated alleged risk from prejudicial article published on day of jury selection); *State v. Lafferty*, 749 P.2d 1239, 1251 (Utah 1988) (“It is true that some of the jurors expressed an opinion that Lafferty was guilty; however, after the trial judge had questioned them carefully, each unequivocally stated that he or she would set aside preconceived notions, accord Lafferty a presumption of innocence, and decide the case on the evidence presented at trial.”); *State v. Cayer*, 814 P.2d 604, 610 (Utah Ct. App. 1991) (defendant failed to show prejudice where “exhaustive voir dire was conducted and . . . defendant passed the jury for cause”); *State v. Olsen*, 869 P.2d 1004, 1008 (Utah Ct. App. 1994), *abrogated on other grounds by State v. Doporto*, 935 P.2d 484 (Utah 1997) (“The careful voir dire conducted by the judge, followed by Olsen’s passing the jury for cause, was sufficient to insure that Olsen received a fair trial.”); *State v. Aase*, 762 P.2d 1113, 1116 (Utah Ct. App. 1988) (same).

without more, is sufficient to rebut the presumption of a prospective juror's impartiality would be to establish an impossible standard. It is sufficient if the juror can lay aside his [or her] impression or opinion and render a verdict based on the evidence presented in court."

State v. Lafferty, 749 P.2d 1239, 1250-51 (Utah 1988) (quoting *Murphy v. Florida*, 421 U.S. 794, 800 (1975)).

Lafferty is not an outlier. Courts across the country have repeatedly endorsed voir dire as effective at ensuring a fair and impartial jury despite pretrial media coverage and rejected the notion that jurors are "nothing more than malleable and mindless creations of pretrial publicity."

In re Application & Affidavit for a Search Warrant, 923 F.2d 324, 330 (4th Cir. 1991). As the Fourth Circuit explained:

The reason that fair trials can coexist with media coverage is because there are ways to minimize prejudice to defendants without withholding information from public view. With respect to the potential prejudice of pretrial publicity, ... [v]oir dire is of course the preferred safeguard against this particular threat to fair trial rights ... [and] can serve in almost all cases as a reliable protection against juror bias however induced.

Id. at 329 (internal quotation marks omitted; alterations and second ellipsis in original); *see also*, e.g., *Press-Enterprise II*, 478 U.S. at 15 ("Through *voir dire*, cumbersome as it is in some circumstances, a court can identify those jurors whose prior knowledge of the case would disable them from rendering an impartial verdict."); *United States v. Martin*, 746 F.2d 964, 973 (3d Cir. 1984) ("Testing by *voir dire* remains a preferred and effective means of determining a juror's impartiality and assuring the accused a fair trial." (internal quotation marks omitted)); *State v. Schaefer*, 599 A.2d 337, 345 (Vt. 1991) ("As a basic principle, *voir dire* is the normal and preferred method of combating any effects of pretrial publicity.").

For a relatively small state population-wise, Utah has had more than its fair share of high-profile criminal prosecutions (e.g., the Lafferty Brothers, Brian David Mitchell, Warren Jeffs,

Ronnie Lee Gardner, Gary Bishop, Michael Archuleta, Ralph Menzies, Martin MacNeill, Curtis Allgier, Kouri Darden Richins). Yet a Utah appeals court has *never* reversed a guilty verdict as a result of pretrial publicity. See *KUTV, Inc. v. Conder*, 668 P.2d 513, 518 (Utah 1983) (“Thus far, we have never reversed a conviction on this ground [pre-trial publicity]”). In the Ogden Hi-Fi murders case, for example, one of the most notorious and highly publicized criminal cases in Utah history, a convicted defendant argued on appeal that pretrial publicity denied him a fair trial. The Utah Supreme Court rejected the argument, holding “this is not one of those exceptional cases where pretrial publicity exacerbated by State complicity encouraged the jurors to form such strong preconceived views of the defendant’s guilt as to be considered inherently prejudicial against him.” *Pierre*, 572 P.2d at 1349; see also *State v. Andrews*, 574 P.2d 709 (Utah 1977) (rejecting same argument of other defendant in Hi-Fi case); *Bishop*, 753 P.2d at 458 (denying claim that publicity resulted in unfair trial).

If a defendant wants to make a particularized showing sufficient to satisfy the rigorous constitutional test and overcome the public’s right of access, it requires him to do far more than simply point to pretrial publicity and assert, *ipso facto*, that closure is required.

2. Less Restrictive Alternatives

Even if a proponent of closure makes the highly unusual and particularized showing that pretrial publicity of a specific hearing or record poses a substantial risk to his right to a fair trial, that person must still *also* show that “reasonable alternatives to closure cannot adequately protect the defendant’s fair trial rights.” *Press-Enterprise II*, 478 U.S. at 14; cf. Utah R. Jud. Admin. 4-202.04(6)(C) (“if the record is ordered closed, [the court must] determine there are no reasonable alternatives to closure sufficient to protect the interests favoring closure”).

The Utah Supreme Court has instructed that there are many less restrictive ways to ensure a fair and impartial jury than denying the public access to proceedings and records. Those tools include “use of an enlarged venire, thorough and searching voir dire, and a detailed jury questionnaire.” *State v. Allgier*, 2011 UT 47, ¶ 19, 258 P.3d 589 (internal quotations omitted).

As the Court explained in unsealing an alleged confession by a murder defendant:

[E]nlarging the venire is recognized as a potential way to alleviate[] the problems in a particular case associated with selecting a fair and impartial jury. In addition, voir dire has long been recognized as an effective method of rooting out [potential juror] bias, especially when conducted in a careful and thorough[] manner. Finally, “jury questionnaires” provide a reasonable method for “identify[ing] the extent of exposure prospective jurors may have had to news coverage about this case and assist[ing] counsel in ferreting out people with fixed opinions.”

Id. ¶ 20 (internal quotations and citations omitted). “These reasonable alternatives to [denying access] would provide sufficient protection to [Defendant’s] right to a fair trial in this case regardless of whether the respective interests otherwise weighed in favor of or against [denying access].” *Id.*

Further, with respect to records, redaction is widely recognized as a preferable and less-restrictive alternative to wholesale sealing. Rule 4-202.04 specifically allows for redaction rather than full non-public classification, *see* Utah Code Jud. Admin. R. 4-202.04(5), and it requires that records be closed to the public only if the Court determines that “there are no reasonable alternatives to closure sufficient to protect the interests favoring closure,” *see id.* at R. 4-202.04(6).

It is through these time-tested tools that courts harmonize the public’s constitutional right of access to the courts with a defendant’s right to a fair trial. Because any of these less-restrictive alternatives are preferable to sacrificing the public’s constitutional right of access, the

blanket invocation of pretrial publicity and “fair trial rights” is not sufficient to satisfy this element of the test either.

B. Privacy Interests

Defendant’s other asserted interest, cryptically called “privacy interests” without any elaboration, stands on even shakier ground.

Because Defendant’s “privacy” assertion is not explained, Media Intervenors are left to guess what exactly he means. If he means his own privacy interests as a criminal defendant in his own trial, the assertion is bizarre, to say the least. The Sixth Amendment guarantee of public trials is “for the benefit of the *accused*; that the public may see he is fairly dealt with and not unjustly condemned, and that the presence of interested spectators may keep his triers keenly alive to a sense of their responsibility and to the importance of their functions.” *Waller*, 467 U.S. at 46 (emphasis added). A criminal defendant has no cognizable personal privacy interest in the subject matter of his prosecution or his trial.

Relatedly, if Defendant’s cryptic reference is intended to refer to matters potentially relating to his competency to stand trial or mental state, that assertion likewise fails. Those facts are also part and parcel of his criminal proceeding and are squarely within the public’s right of access even though they may involve medical and psychological information that would, in other contexts, normally be considered private. See *Bullock*, 743 P.2d at 1177-79.

If, on the other hand, the reference is intended to protect privacy interests of victims or witnesses—which would be unusual in the context of this hearing transcript regarding the Defendant’s clothing—that assertion might have some merit. But it would need to be closely circumscribed and resolved, if at all, through careful and limited redaction of references to

personally identifying information of such individuals not otherwise already in the public domain.

If this Court requires Defendant to state the basis for his purported privacy redactions, as it should (if it entertains them at all), and if those concerns are not summarily rejected as a basis for sealing otherwise public court records, Media Intervenors request the opportunity to provide the Court with supplemental briefing on those specific interests before further sealing decisions are made.

III. The Transcript and Audio of the Hearing Should be Made Public with Limited, if any, Redactions

At this point, both Defendant and the State appear to have retreated from their original blanket sealing requests, and the limited nature of the redaction requests they make is a marked improvement. But the skeletal stipulation they filed asking for those redactions, apparently assuming their mere stipulation is enough to justify sealing without even describing the nature of the request or its basis, obviously does not pass constitutional muster.

It may be that some of the portions of the transcript identified in that stipulation legitimately qualify for non-public classification. It is impossible for Media Intervenors to know given the parties' failure to make the requisite closure showing by actually discussing what is at issue. And in that regard, short of the parties allowing counsel for the Media Intervenors to see the portions of the transcript they seek to seal and allow argument on the same, the public is relying on this Court to be the watchdog of those otherwise concealed requests and to enforce the public's interest in keeping these proceedings open, consistent with this Court's constitutional role, and to conceal only those portions of the transcript that satisfy the rigorous standard necessary to deny the public access to these proceedings. This Court should carefully scrutinize

those requests and seal only those portions that truly satisfy the requirements for non-public records.⁵

Two final points are worth mentioning, because they may recur.

First, as to stipulations. It is an unfortunate but understandable reality of the court system that when parties to a case stipulate, many courts sign orders closing hearings or sealing documents with minimal scrutiny, or at least without adversarial briefing. That may have been what happened with the initial hearing in this case, and what the parties assumed would happen with their stipulated motion to seal. But the frequency of that practice does not make it right, as the Utah Supreme Court has explained. See *Supernova Media, Inc. v. Pia Anderson Dorius Reynard & Moss, LLC*, 2013 UT 7, ¶¶ 55-60, 297 P.3d 599. And in the First Amendment context, it is particularly problematic. “Because the public and the judicial system also have interests implicated by the public trial right, the parties may not simply agree to a closed proceeding. ‘The public has a right to be present whether or not any party has asserted the right.’” *State v. Rogers*, 919 N.W.2d 193 (N.D. 2018) (quoting *Presley v. Georgia*, 558 U.S. 209, 214 (2010)). This is why courts so readily grant limited intervention to media parties for purposes of assessing closure requests, lest the court be left as the sole guardian of the public’s right to know. Stipulations, in this context, are not enough.

Second, as to transcripts. Sometimes proponents of closure assert it is enough that the news media and public get access to the transcript of improperly closed proceedings after the fact, as if the provision in writing of what transpired in the past substitutes for contemporaneous

⁵ In nearly all matters in our adversarial judicial system, courts benefit from full argument on all sides. To that end, counsel for the Media Intervenors are willing to receive any provisionally sealed portions of the transcript or other records on which the Court remains undecided on a temporary attorneys-eyes-only basis for the purpose of presenting argument, not to be disclosed until further order of the Court.

access to the courtroom. That, too, is not the law. To be sure, getting the transcript of an improperly closed hearing is better than nothing, and it may be the only remedy an excluded person has to restore some remnant of the constitutional right of access that was abridged by the closure. That was the remedy in both *Press-Enterprise I*, where a transcript of improperly closed voir dire proceedings was ordered to be released with limited redactions, and in *Bullock*, where release of a transcript of an improperly closed competency hearing was ordered to be reconsidered on remand. *Press-Enterprise I*, 464 U.S. at 513; *Bullock*, 743 P.2d at 1179. And given that the public had been unlawfully excluded from both, it was, of course, better than nothing.

But it is not the same. As Judge Winder observed decades ago:

The full flavor of the hearing cannot be sensed from the sterile sheets of a transcript. Emotions, gestures, facial expressions, and pregnant pauses do not appear on the reported transcript. Much of what makes good news is lost in the difference between a one-dimensional transcript and an opportunity to see and hear testimony as it unfolds.

Soc’y of Prof’l Journalists, 616 F. Supp. at 578 (cleaned up); see also *Richmond Newspapers*, 448 U.S. at 597 n. 22 (Brennan, J., concurring in the judgment) (“[T]he availability of a trial transcript is no substitute for a public presence at the trial itself. As any experienced appellate judge can attest, the ‘cold’ record is a very imperfect reproduction of events that transpire in the courtroom.”); *ABC, Inc. v. Stewart*, 360 F.3d 90, 99 (2d Cir. 2004) (“But one cannot transcribe an anguished look or a nervous tic. The ability to see to hear a proceeding as it unfolds is a vital component of the First Amendment right of access—not ... an incremental benefit.”).

Here, the closed hearing has come and gone, and releasing the transcript is the best that can be done to allow the public to see what it should have seen contemporaneously. As this case

proceeds, if further requests are made to close hearings, Media Intervenors request this Court remain cognizant that contemporaneous access to those hearings, not merely after-the-fact access to the transcript, is what the constitution requires.

CONCLUSION

“People in an open society do not demand infallibility from their institutions, but it is difficult for them to accept what they are prohibited from observing.” *Richmond Newspapers*, 448 U.S. at 572. For all these reasons, this Court should deny the Stipulated Motion to Classify Transcript and Audio as Private, should redact only those portions of the audio and transcript, if any, that meet the constitutional standard for denying the public’s right of access, and should release the records to the public without delay.

RESPECTFULLY SUBMITTED this 8th day of December 2025.

PARR BROWN GEE & LOVELESS

/s/ Jeffrey J. Hunt

Jeffrey J. Hunt

David C. Reymann

Carissa A. Uresk

Attorneys for Attorneys for the Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, and the Utah Headliners Chapter of the Society of Professional Journalists

PARSONS BEHLE & LATIMER

/s/ C. Michael Judd

C. Michael Judd

Attorneys for The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network

CERTIFICATE OF WORD COUNT

I HEREBY CERTIFY that the foregoing contains 6,331 words, excluding those portions set forth in Utah R. Civ. P. (q)(2), according to the word count function in Microsoft Word.

/s/ Jeffrey J. Hunt